Your lodged domestic building dispute resolution application

Date lodged:	Sunday, 2 August 2026
Application number:	DBDRV-2026-08-54054

A copy of your lodged domestic building dispute resolution application is provided below for your records.

Section 1 - Dispute details

Street name and number	9 Furness Cl
Suburb or town	WYNDHAM VALE
State	VIC
Postcode	3024
What is the age of the building work in dispute?	3 to 6 years
How long have you been in dispute with the other party?	Less than 6 months
Have you attempted to resolve this dispute?	Yes
If no, please provide a short explanation.	
When did you last contact them?	15/07/2026
How did you make contact?	Email

'Victorian Building Authority trading as Building and Plumbing Commission (78 790 711 883)'

Has the other party responded to you about the dispute?	Yes
What was the outcome based on their response?	The builder denied responsibility, attributed the cracking and drainage issues to post-completion landscaping, and did not offer rectification or provide the requested supporting evidence. Other notified defects were not substantively addressed, so the dispute remains unresolved.
Are you aware of any other parties submitting an application at this property?	No
Was there a building contract or agreement?	Yes
Please provide a short explanation.	
What is the date of the building contract or agreement (DD/MM/YYYY)?	5/06/2020
Provide name of other party on building contract or agreement.	Symmetric Homes
Who was the building contract between?	Builder + Previous Owner
What is the date on your occupancy permit?	20/04/2021
What is the date on your certificate of final inspection?	

What is the dispute about?

Defective building work	Yes
Incomplete building work	No
Delayed works	No
Owner's failure to pay	No

Builder's failure to pay	No
Access to building site	No
Other	No
If other, provide details.	

What is the total value of the contract?	$260,000.00
What is the value of the specific work in dispute?	$50,000.00
How much money is in dispute?	
Have you sought legal advice regarding your dispute?	No
Has this dispute been taken to VCAT or a court?	No
Are you lodging this application on behalf of someone else? You are a	

Section 2 - Your contact details

Given name	James
Family name	Goodricke
Business or Company name	
Australian Business Number (ABN) or Australian Company Number (CAN)	
Builder registration number	
Email address	jamesandjihyung@gmail.com

I agree to receive written communications and notices from Domestic Building Dispute Resolution Victoria in electronic form, including by email, regarding my application for dispute resolution.	Agree
Daytime phone number	0431920121
Do you require an interpreter?	No
Language	

Postal address

Street name and number	9 Furness Cl
Suburb or town	WYNDHAM VALE
State	VIC
Postcode	3024

Co-owners's contact details

Given name	Jihyung
Family name	Park
Email address	
Daytime phone number	

Co-owners postal address

Street name and number	

Suburb or town	
State	
Postcode	

'Victorian Building Authority trading as Building and Plumbing Commission (78 790 711 883)'

Section 3 - Other party's details

Given name	Mustafa
Family name	Yorenc
Business or Company name	Symmetric Homes
Australian Business Number (ABN) or Australian Company Number (ACN)	68133114628
Builder registration number	DBU30449
Email address	info@symmetrichomes.com.au
Daytime phone number	0396762409

Other party's postal address

Street name and number	26 Cook St
Suburb or town	PORT MELBOURNE
State	VIC
Postcode	3207

'Victorian Building Authority trading as Building and Plumbing Commission (78 790 711 883)'

Section 4 - Further comments

Further comments	We are the current owners of 9 Furness Close, Wyndham Vale. The dwelling was constructed by Symmetric Homes. A visual Property and Timber Pest Inspection dated 9 June 2026 recorded significant cracking to the garage concrete slab, Category 2 cracking to external brickwork, inadequate surface grading and drainage with water ponding near the dwelling, elevated moisture or possible waterproofing concerns in the bathroom, possible window water ingress, and the additional items listed in the attached defect schedules. The inspection report did not conclusively determine causation and recommended further specialist assessment of the cracking. We notified Symmetric Homes of the reported defects in writing on 11 June. Symmetric Homes was provided with reasonable access and arranged an inspection of the property on 2 July 2026. Following repeated written requests for its findings, Symmetric Homes acknowledged cracking, minor settlement, inadequate falls and water ponding, but denied responsibility. It alleges that landscaping, paving or other work undertaken after practical completion altered the original drainage grades and caused the observed movement. Symmetric Homes has not provided the requested inspection summary or photographs, measurements of the cracking, level surveys, practical-completion photographs or level records, original drainage records, or other material substantiating its causation conclusion. Although its correspondence stated that an inspection summary and photographs were attached, no such attachments were provided. Symmetric Homes has asserted that the dwelling is more than six years old and is therefore no longer covered by warranty. We dispute that assertion. The occupancy permit was issued on 20 April 2021, meaning that, as at 1 August 2026, the building work is approximately five years and three months old. In addition, we understand that the six-year period may relate to domestic building insurance coverage for structural defects and is not necessarily the expiry of the builder's statutory implied warranties or responsibility for defective

	domestic building work. We request that the BPC consider the applicable warranty and limitation provisions. The parties therefore dispute: 1. whether the garage slab cracking, external wall cracking, movement, drainage and moisture conditions arise from defective or incomplete original building work; 2. whether original site preparation, surface drainage, slab or footing work contributed to the conditions; 3. whether post-completion landscaping or other later work altered the original ground levels and, if so, the extent to which that contributed; and 4. what investigation and rectification are reasonably required. Symmetric Homes has denied responsibility and has not offered any further substantiated investigation or rectification proposal. We remain willing to provide reasonable access for inspection, photography, measurements and non-invasive assessment. Before permanent crack repairs, repointing, filling, slab injection or other work that may alter or conceal the existing conditions, we seek a properly documented assessment of the likely underlying cause and a written rectification scope. We remain willing to consider agreed temporary protective or drainage measures required to prevent further damage

Declaration

By submitting this form, I acknowledge that I have signed this application for domestic building dispute resolution.	Agree